IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD
(Special Original Jurisdiction)

TUESDAY, THE TENTH DAY OF MARCH
TWO THOUSAND AND TWENTY SIX

PRESENT

THE HONOURABLE SRI JUSTICE VAKITI RAMAKRISHNA REDDY

WRIT PETITION NO: 15731 OF 2010

Between:

1. Smt. T. Rama Devi, W/o. Mallappa Household R/o. Ravirala Village, Maheshwaram Mandal, Ranga Reddy District
2. Sri Devereddy Pochi Reddy (died) per LRs, S/o. D. Veera Reddy Agricultural R/o. Tukkuguda Village, Maheshwaram Mandal Ranga Reddy District
3. Sri G.M.Narasimha Reddy, S/o. Madhav Reddy Retd. Employee R/o. Thimmapur Village, Kandukur Mandal, Ranga Reddy District
4. Sri G.Venkat Raji Reddy, S/o. Madhav Reddy Retd. Employee R/o. Thimmapur Village, Kandukur Mandal, Ranga Reddy District
5. Smt. Devireddy Manga W/o. late Pochi Reddy, R/o. Tukkuguda Vg., Maheswaram Mandal, R.R. Dist.
6. Sri. Devireddy Sandeep Reddy S/o. late Pochi Reddy, R/o. Tukkuguda Vg., Maheswaram Mandal, R.R. Dist.
7. Sri. Devireddy Santosh Reddy S/o. late Pochi Reddy, R/o. Tukkuguda Vg., Maheswaram Mandal, R.R. Dist.
8. Sri. Devireddy Sudheer Reddy S/o. late Pochi Reddy, R/o. Tukkuguda Vg., Maheswaram Mandal, R.R. Dist.

Petitioners 5 to 8 are brought on record as LRs of deceased 2nd petitioner as per C.O. dt. 24-10-13 in WPMP 35450/12

AND

...PETITIONERS

1. The State of Andhra Pradesh, Rep. by its Secretary,, Revenue Department, Secretarait, Hyderabad
2. The Special Deputy Collector, Land Acquisition (Industries), Spurthi Bhavan, Khairatabad, Hyderabad
3. The Tahsildar,, Saroornagar Mandal, Ranga Reddy District

...RESPONDENTS

Petition under Article 226 of the Constitution of India praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to Issue a writ order or direction more particulalry one in the nature of writ of mandamus declaring that the order passed in proceedings No.D/1055/2004-3, Dt.10.4.2008 of the second respondent i.e., Special Deputy Collector, Land Acquisition (Industries) Hyderabad respondents without considering of the petitioners objections and documentary evidence filed by the them and there by depriving their lawful rights for the compensation of their acquired plots bearing Nos 131 admeasuring 192 Sq. yds, plot.Nos 58,75 admeasuring 275 Sq. Yds and Plot.No. 132 admeasuring 170 Sq.Yds respectively forming part of Sy. No. 7,21, and 22 situated at Roshandowla (v), Saroornagar (M), R.R. District as illegal, arbitrary, unconstitutional and against to the principles of natural justice and hence liable to set-aside.

I.A. NO: 1 OF 2010 (WPMP. NO: 19812 OF 2010)

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased direct the respondents to consider the petitioners for the compensation of their acquired plots bearing No's 131 admeasuring 192 Sq. yds, plot.Nos 58,75 admeasuring 275 Sq. Yds & Plot.No. 132 admeasuring 170 Sq.Yds respectively forming part of Sy. No. 7,21, & 22 situated at Roshandowla (v), Saroornagar (M), R.R. District by suspending the operation of the order passed in Proceedings No. D/1055/2004-3, dated 10.4.2008 till the pending disposal of the main writ petition and pass

Counsel for the Petitioners: SRI AVANCHA H. CHAKRAVARTHY

Counsel for the Respondents: SRI B. VIJAY KUMAR, AGP FOR LAND ACQUISITION

The Court made the following: ORDER

IN THE HIGH COURT FOR THE STATE OF TELANGANA AT HYDERABAD

THE HON'BLE SRI JUSTICE VAKITI RAMAKRISHNA REDDY

WRIT PETITION.No.15731 of 2010

DATE: 10.03.2026

Between:

Smt. T. Rama Devi & Others ...Petitioners

AND

The State of Andhra Pradesh & Others ...Respondents

ORDER:

This writ petition is filed under Article 226 of the Constitution of India challenging the proceedings No.D/1055/204-3 dated 10.04.2008, issued by respondent No.2 i.e., Special Deputy Collector, Land Acquisition (Industries), Hyderabad, on the ground that the same has been passed without due consideration of the objections and the documentary evidence submitted by the petitioners.

2. Heard Sri Avancha H Chakravarthy, learned counsel for the petitioners; and Sri B.Vijay Kumar, learned Assistant Government Pleader for Land Acquisition appearing for the respondents. Perused the entire material available on record.

FACTS IN BRIEF:-

3. It is the case of the petitioners that they are the absolute owners and possessors of Plot Nos. 58 and 75 admeasuring 275 Sq. Yds, Plot No.131 admeasuring 192 Sq. Yds, and Plot No.

132 admeasuring 170 Sq. Yds, forming part of Survey Nos. 7, 21 & 22 respectively situated at Roshandowla Village, Saroornagar Mandal, Ranga Reddy District (for short the "subject plots"). They state that they purchased the said plots through registered sale deeds in the year 1989 from the original owners, namely, Tallari Sattaiah & others, represented by their GPA Holder Smt. Panala Renuka, W/o P. Parvathal Reddy, and that possession was handed over to them on the date of purchase itself.

4. It is further stated that the subject plots were acquired by the respondents for the purpose of establishing Research Facilities and a Security Strip around the boundaries of D.R.D.L. In furtherance thereof, land acquisition proceedings were initiated, and a Notification under Section 4(1) of the Land Acquisition At, 1894 (for short "the Act"), was issued on 06.07.2006 and published in the then A.P. Gazette. The same was thereafter published in an English daily on 23.07.2006 and in "Vartha" Telugu daily on 24.07.2006. Pursuant thereto, a declaration under Section 6 of the Act came to be published on 26.07.2006.

5. The grievance of the petitioners arises out of the award enquiry conducted by respondent No.2. According to the petitioners, they had submitted their claim petitions along with relevant documentary evidence in support of their claims for

compensation. However, while passing the impugned award dated 10.04.2008, respondent No.2 recorded a finding that the petitioners failed to produce documentary evidence in support of their claims. It was further observed in the award that Survey Nos. 5, 7, and 21 of Roshandowla Village were earlier declared as surplus lands to an extent of 22,103.85 square meters by the Special Officer and Competent Authority, Urban Land Ceiling, Hyderabad, vide proceedings dated 11.07.1994, and possession thereof was handed over to the Mandal Revenue Officer.

6. The material placed before this Court further discloses that a survey was conducted to identify the extent of land affected by acquisition. As per the survey report, out of Acs.4.27 gts (22,627 Sq. Yds) under acquisition, an extent of 18,006 Sq. Yards was treated as retainable area, while the remaining extent was classified as surplus land. Accordingly, it was observed that compensation was not payable for the surplus area admeasuring 4015 square yards. However, the extent of 18,612 square yards falling under retainable area was held to be eligible for compensation. In that view insofar as, Survey No.7 is concerned, compensation at the rate of Rs.600/- per square yard was awarded for an extent of 14,801 square yards along with statutory benefits under the Land Acquisition Act, 1894. Nevertheless, insofar as the petitioners are concerned, their

claim for compensation was deferred on the ground that they failed to produce documentary evidence.

7. Aggrieved by the impugned award dated 10.04.2008, to the extent it deferred payment of compensation, the petitioners have filed the present writ petition.

8. A counter-affidavit has been filed by respondent Nos.1 and 2 contending that the petitioners failed to produce documentary evidence in support of their claim and, therefore, the award was rightly passed deferring payment of compensation.

SUBMISSIONS OF THE PARTIES

A. Submissions on behalf of the petitioners

9. Learned counsel for the petitioners contended that the petitioners had, in fact, submitted their claim petitions along with relevant documents, before respondent No.2, but the same were not duly considered while passing the impugned award. It is further contended that the petitioners had raised objections to the acquisition and sought allotment of alternative plots, however, the impugned award came to be passed without considering the said objections as well as the documents filed by them. According to the learned counsel, deferment of compensation without proper consideration of the claim and supporting material is arbitrary and unsustainable in law.

B. Submissions on behalf the Respondents:-

10. On the other hand, the learned Assistant Government Pleader for Land Acquisition contended that the petitioners failed to submit sufficient documentary evidence in support of their claim and therefore, respondent No.2 rightly deferred the payment of compensation under the impugned award proceedings. It is further contended that Survey Nos. 21 and 22 were declared as surplus lands under the Urban Land Ceiling Act and possession thereof was handed over to the Mandal Revenue Officer. Consequently, according to the respondents no compensation is payable in respect of such lands.

Points for Determination:-

11. In the light of the rival submissions advanced by the learned counsel appearing on either side and upon perusal of the material available on record, the following points arise for determination before this Court:

"(i) Whether deferment of compensation solely on the ground of alleged non-production of documentary evidence is sustainable in law ?

(ii). Whether the petitioners are entitled to an opportunity to substantiate their claim for compensation before the competent authority ?

Analysis:-

12. Upon consideration of the rival submissions and perusal of the available record, it becomes evident that the primary reason assigned by respondent No.2 for deferring the petitioners' claim for compensation is the alleged failure to produce documentary evidence in support of their claim. Notably, it is not the categorical stand of the respondents that the petitioners are wholly disentitled to compensation on merits.

13. The right to property, though no longer a fundamental right, continues to be a valuable constitutional right under Article 300-A of the Constitution of India and no person can be deprived of property save by authority of law. Compensation, where statutorily envisaged, constitutes an integral facet of such lawful deprivation.

14. In cases where entitlement is not rejected on merits but is deferred on account of sufficiency of material, procedural fairness demands that an opportunity be afforded to the claimant to cure such defect. Denial of such opportunity would render the process arbitrary and vulnerable to challenge.

15. A perusal of the record reveals that, insofar as Survey No.7 is concerned, a portion of the land was treated as surplus and another portion as retainable area, for which compensation has been awarded. However, in respect of lands covered under Survey Nos. 21 and 22, the same were classified as surplus

lands under proceedings dated 11.07.1994, and consequently no compensation was awarded for those lands. Whether such classification conclusively disentitles the petitioners from claiming compensation or whether any portion of their land falls within retainable category, are matters requiring factual verification by the competent authority. Upon examination of the relevant records and documents.

16. Be that as it may, the primary ground on which the petitioners' claim was deferred is that they failed to produce documentary evidence. Further, it is not the specific case of the respondents that the petitioners are not entitled to compensation on merits, but only that their claim was not supported by sufficient documentary evidence at the relevant point of time.

17. In the considered view of this Court, when the denial or deferral of compensation rests primarily upon alleged absence of documentary substantiation, the ends of justice would warrant affording an opportunity to the petitioners to place all such relevant material before the Competent Authority for fresh consideration.

18. From the material placed before this Court, it is evident that the petitioners' claim for compensation was not rejected on an adjudication of entitlement on merits, but was merely

deferred on the ground of alleged non-production of documentary evidence. At the same time, the respondents themselves acknowledge that compensation has been awarded in respect of retainable portions of the acquired lands, while denying the same only in respect of lands classified as surplus under the ULC proceedings. Therefore, the question as to whether the petitioners' plots wholly or in part, fall within the retainable category and whether they are entitled to compensation necessarily required factual verification upon examination of records and documents.

19. This Court is of the considered view that when deprivation of compensation is founded primarily on insufficiency of documentary evidence, the principles of fairness and natural justice warrant affording the claimants a meaningful to place the requisite material before the competent authority. Such an exercise would not prejudice the respondents in any manner, while at the same time ensuring that a legitimate claim, if otherwise sustainable in law, is not defeated merely on procedural grounds.

20. In the facts and circumstances of the case, this Court deems it appropriate to remit the matter to respondent No.2 for fresh consideration of the petitioners' claim in accordance with law, after granting due opportunity to the petitioners to substantiate their entitlement.

Result:

21. Accordingly, the writ petition is disposed of by setting aside the proceedings dated 10.04.2008, issued by respondent No.2, to the limited extent of deferment of the petitioners' claim for compensation, and the matter is remanded to respondent No.2 for fresh consideration in accordance with law.

Directions:

22. Consequently, the following directions are issued:-

(i) The petitioners shall submit a fresh representation along with all relevant documents and material in support of their claim before respondent No.2 within a period of four (04) weeks from the date of receipt of a copy of this order;

(ii) Upon such representation being made, respondent No.2 shall afford the petitioners a reasonable opportunity of personal hearing and permit them to place all documents in support of the claim; thereafter consider (a) whether the petitioners' plots fall within surplus land category or retainable area in terms of the proceedings dated 11.07.1994; and (b) whether the petitioners are entitled to compensation in accordance with law;

(iii) If it is found that the petitioners' plots, wholly or in part, fall within the retainable area, respondent No.2 shall pass appropriate orders for payment of compensation in accordance with law; together with all admissible statutory benefits;

(iv) Respondent No.2 shall pass a reasoned and speaking order dealing with the claims and documents submitted by the petitioners;

(v) A copy of the order so passed shall be communicated to the petitioners forthwith;

(vi) The aforesaid exercise shall be completed within a period of eight (08) weeks from the date of receipt of the representation from the petitioners.

23. It is made clear that this Court has not expressed any opinion on the merits of the petitioners' claim.

24. There shall be no order as to costs.

Miscellaneous Petitions, pending if any, shall stand closed.

SD/-P.PONNA KRISHNA
ASSISTANT REGISTRAR

//TRUE COPY//

SECTION OFFICER

To,

1. The Secretary,, Revenue Department, Secretarait, State of Andhra Pradesh, Hyderabad
2. The Special Collector, Land Acquisition (Industries), Spurthi Bhavan, Khairatabad, Hyderabad
3. The Tahsildar,, Sarcornagar Mandal, Ranga Reddy District
4. One CC to SRI AVANCHA H. CHAKRAVARTHY Advocate [OPUC]
5. Two CCs to GP FOR LAND ACQUISITION, High Court for the State of Telangana, at Hyderabad [OUT]
6. Two CD Copies

AGK

TKS

HIGH COURT

DATED: 10/03/2026

ORDER

WP.No.15731 of 2010



DISPOSING OF THE WRIT PETITION
WITHOUT COSTS

(9)

01/9/26